

Court No. - 3

Case :- WRIT - C No. - 9982 of 2022

Petitioner :- Pradeep Kumar

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Sandeep Kumar Rai

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"i) To, issue a writ, order or direction in the nature of certiorari quashing the impugned recovery notice dated 27.08.2021 for an amount of Rupees 19,50,385/- issued by respondent no.3.

ii) issue a writ, order or direction in the nature of mandamus directing the respondent no.3 to provide the correct electricity bills as per proper meter reading."

Learned counsel for the respondent Nos. 2 & 3 Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3, in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 26.5.2022/vkg